

IN THE SUPREME COURT OF PAKISTAN
(Appellate Jurisdiction)

PRESENT:

MR. JUSTICE MALIK SHAHZAD AHMAD KHAN
MR. JUSTICE AQEEL AHMED ABBASI

Jail Petition No.543 of 2021

(Against the judgment dated 22.09.2021 passed by Lahore High Court, Bahawalpur Bench, Bahawalpur in Crl. Appeal No.24 & 173/2010)

Haji Ahmad Bakhsh

...Petitioner(s)

Versus

The State

...Respondent(s)

For the Petitioner(s): Mr. Javed Imran Ranjha, ASC
(Via V.L. Lahore)

For the State: Mirza Abid Majeed, DPG, Punjab

Date of Hearing: 05.05.2026

ORDER

MALIK SHAHZAD AHMAD KHAN, J.- Through this petition the petitioner has sought leave against the judgment of the Lahore High Court, Bahawalpur Bench, Bahawalpur dated 22.09.2021. Haji Ahmad Bakhsh (petitioner), Saeed Ahmad (co-accused, since acquitted) and Shahzad Ahmad (co-accused since acquitted) were tried by the Additional Sessions Judge, Bahawalnagar pursuant to case FIR No.198 dated 04.11.2007 under Sections 302, 337-A(i), 337-F(i), 337-L(2), 148 and 149 PPC registered at Police Station, Madrissa District Bahawalnagar. The learned Trial Court vide its judgment dated 16.01.2010 convicted and sentenced the Saeed Ahmad (co-accused) u/s 337-F(i) PPC to rigorous imprisonment for one (01) year and he was also directed to pay an amount of Rs. 20,000/- as Daman to the injured Muhammad Bashir (complainant), in default of payment of fine he was directed to further undergo S.I. for 06 months. Hajid Ahmad Bakhsh (petitioner) and Shahzad Ahmad (co-accused) were convicted and

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sentenced u/s 302(b) PPC by way of Tazir to life imprisonment (R.I). They were also directed to pay compensation amount of Rs.100,000/- to the legal heirs of deceased as envisaged under Section 544-A Cr.PC, in default whereof, both were directed to further undergo S.I for 06 months each. Benefit of Section 382-B, Cr.PC was also extended to both the convicts. In appeal, the learned High Court maintained the conviction and sentence of the petitioner while his co-accused Shahzad Ahmad and Saeed Ahmed were acquitted of all the charges.

2. Arguments heard and record perused.

3. As per contents of the FIR, on 04.11.2007 at 09:30 AM, the complainant came to the barber shop of Allah Yaar @ Naseer Ahmed (DW-1) and noticed that Allah Yaar @ Naseer Ahmed and his brother Haji Ahmed Bakhsh (petitioner) were quarrelling with each other, on account of a domestic/family dispute. The brother of the complainant, namely Munir Ahmed (deceased) and Mushtaq Ahmed (PW-9), tried to intervene in order to pacify the matter between them, whereupon Haji Bashir Ahmed (petitioner) raised a *lalkara* that they should not intervene as it was their personal family dispute between the two brothers. Even then, the complainant party tried to cool down the petitioner and his brother, which infuriated the petitioner who inflicted a knife blow on the back side of the chest of Munir Ahmed (deceased). Thereafter, Shahzad Ahmad (co-accused, since acquitted) also inflicted a knife blow on the back side of the chest of Munir Ahmed (deceased); then Saeed Ahmed (co-accused, since acquitted) also inflicted a scissor blow on the chest of Muhammad Bashir, complainant (PW-8). The accused persons, namely Haji Ahmad Bakhsh (petitioner), Saeed Ahmad (co-accused, )

since acquitted), and Shahzad Ahmad (co-accused, since acquitted), then caused injuries to Allah Yaar @ Naseer Ahmed (DW-1) and Mushtaq Ahmed (PW-9). The accused thereafter fled away from the spot. Munir Ahmed (deceased) succumbed to the injuries at the spot. Hence, the FIR of the instant case.

4. The occurrence of this case took place in the broad daylight and, as such, there was no chance of any misidentification of the petitioner during the occurrence. He was assigned a specific role of inflicting a knife blow on the back side of the chest of Munir Ahmed (deceased).

5. The ocular account of the prosecution has been brought on the record through Muhammad Bashir, complainant (PW-8), and Mushtaq Ahmed (PW-9). Both the above-mentioned witnesses are injured eye-witnesses of the prosecution, and the injuries on their bodies are the stamp of their presence at the spot at the relevant time. They were cross-examined at length by the learned defense counsel, but their evidence could not be shaken, which is confidence-inspiring.

6. The ocular account of the prosecution has been fully supported by the medical evidence produced by the prosecution through Dr. Shamshad Hussain (PW-11). The said medical officer was also cross-examined by the learned defense counsel, but nothing favourable to the petitioner could be brought on the record. We are, therefore, of the view that the prosecution has proved its case against the petitioner beyond the shadow of any doubt.

7. It is, however, noteworthy that it was not a case punishable u/s 302(b) PPC; rather, the same fell under the provisions of Section 302(c) PPC. Admittedly, there was no previous enmity between the parties; no motive was alleged against the

petitioner for committing the occurrence. Even as per prosecution's own case, the occurrence took place when the complainant party noticed Haji Ahmed Bakhsh (petitioner) was quarrelling with his brother, Allah Yaar @ Naseer Ahmed (DW-1), on account of a family dispute, whereupon the complainant party tried to intervene. It is also noteworthy that, as per the evidence of Dr. Shamshad Hussain (PW-11), Haji Ahmed Bakhsh (petitioner) was also injured during the occurrence. The petitioner was medically examined on the day of occurrence and, according to the evidence of Dr. Shamshad Hussain (PW-11), there were five (05) injuries on the body of the petitioner. The investigating officer has also conceded during his cross-examination that the petitioner was also injured during the occurrence and he got him medically examined on the same day. The above-mentioned pieces of evidence substantially support the defense version of the petitioner that, in fact, he was attacked upon by the complainant party on the day of occurrence and, when he was injured, he exercised the right of his self-defence. According to the site plan (Ex.PL), the occurrence took place in front of the barber shop of Haji Ahmed Bakhsh (petitioner). No shop or house of the complainant party has been shown in the site plan. Injuries on the body of the petitioner were concealed by the complainant party, which shows that they have not narrated the true facts while lodging the FIR. Even the learned Trial Court, in para-15 of its judgment, has observed that both the parties had concealed real facts from the court. It was also concluded by the learned Trial Court in para-24 of its judgment that the petitioner has exceeded the right of self-defence. The said observations were made on the ground that there were six (06) injuries on the body of the deceased, but the fact remains that in the contents of the FIR, as well as in prosecution evidence recorded by the Trial Court, only one injury on

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the back side of the chest of the deceased was assigned to the petitioner. Furthermore, Shahzad Ahmed (co-accused, since acquitted) was also attributed the role of inflicting one knife blow on the back side of the chest of Munir Ahmed (deceased), but he has been acquitted by the learned High Court. The remaining injuries on the body of the deceased, except one injury, were not assigned to the petitioner and, as mentioned earlier, there were five (05) injuries on the body of the petitioner. We are therefore, of the view that as the petitioner was himself injured during the occurrence therefore, he exercised his right of self-defence, however, he exceeded the said right, therefore, his case falls u/s 302(c) PPC.

8. Keeping in view all the above-mentioned facts, this petition is converted into an appeal and the same is partly allowed. The conviction and sentence of the petitioner u/s 302(b) PPC is hereby set aside, and his conviction is converted into offence u/s 302(c) PPC, and he is awarded the sentence of 15 years R.I. The compensation and the sentence in default thereof, as awarded by the learned Trial Court and upheld by the learned High Court, are maintained.

Islamabad:

05.05.2026

NOT APPROVED FOR REPORTING

Tanveer Ahmed